



Notification Waiver Determination

Coles – shopping centre in Albion Park, NSW

Acquisition	Coles Group Property Developments Ltd (CGPD) applied for a notification waiver in respect of its proposed acquisition of a freehold interest in a single lot (Lot 1 in DP1046094) within the Albion Park Shopping Centre located at 60 Terry Street, Albion Park NSW 2527 (the Target Site) from Battista Enterprises Pty Ltd, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	28 September 2026

Parties to the Acquisition	Coles Group Limited (Coles) is an Australian public company (ASX: COL) that primarily operates: • supermarkets nationwide through its subsidiary, Coles Supermarkets Australia Pty Ltd; and • retail liquor stores nationwide, trading under the Liquorland, Liquorland Warehouse and Liquorland Cellars brands. CGPD operates as Coles' property development arm, that buys land and constructs shopping centres, standalone supermarkets and / or liquor outlets and then sells these completed sites to third party buyers. The vendor, Battista Enterprises Pty Ltd, is an Australian private company that specialises in the ownership of commercial and retail property development. The land subject to the Acquisition is located in the Albion Park Shopping Village in Albion Park, NSW. Albion Park Shopping Village currently comprises a Woolworths supermarket, 14 specialty retailers, a Woolworths petrol station and on-site parking for 184 vehicles. Albion Park is located approximately 20km south-west of Wollongong, NSW. The freehold interest would be an input into Coles' supermarket retailing operations.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. Coles proposes to open a new supermarket site in Albion Park, New South Wales, where it does not currently operate b. the presence of alternative grocery retailers in and around the surrounding local area, including Woolworths, ALDI, FoodWorks and IGA. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds determined under section 51ABP(1) being met. The ACCC observes that the targeted notification requirements for supermarkets determined under section 51ABQ(1) may also apply, but it does not consider it necessary to reach a concluded view in this regard. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act